

MUTUAL NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (this “**Agreement**”) is entered into by and between _____ (the “**Company**”) and ARTIFICIAL INTELLIGENCE, INC. (“**AI**”) as of _____, _____, 201__.

PRELIMINARY STATEMENTS

WHEREAS, the parties hereto are contemplating entering into a business relationship or transaction (the “**Transaction**”); and

WHEREAS, for the purpose of evaluating, entering into or performing the Transaction (the “**Purpose**”), each party hereto (each, in such capacity, a “**Recipient**”) may acquire from the other party (each, in such capacity, a “**Discloser**”) certain proprietary or confidential information of the other party; and

WHEREAS, each of the parties hereto acknowledges the importance to the other party of safeguarding the confidentiality of such information.

NOW, THEREFORE, in consideration of the foregoing premises and for other good and valuable consideration, the mutual receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

STATEMENT OF AGREEMENT

1. Definition of Confidential Information.

The term “**Confidential Information**” includes, among other things, all business strategies, business records, marketing information, strategies, plans, concepts, formulae, notes, analyses, compilations, studies, interpretations, customer lists, data, architecture descriptions or other documents or materials, whether oral, written or otherwise, and regardless of the applicable medium or format, prepared by Discloser or its representatives, which contain, reflect or are based upon any information furnished to Recipient or its representatives pursuant hereto. The term Confidential Information does not include information which (i) is or becomes generally available to the public through no act or failure to act on the part of the Recipient or its representatives, (ii) was rightfully within Recipient’s possession prior to its being furnished by or on behalf of Discloser pursuant hereto or is disclosed to Recipient by another party without restriction as to use or disclosure, (iii) becomes available to Recipient on a non-confidential basis from a source other than the Discloser, or (iv) is information which the Recipient can document was independently developed by the Recipient without breach of any obligation of confidentiality hereunder.

Confidential Information may be disclosed:

- in writing;
- by delivery of tangible things;
- by initiation of access to information, such as may be contained in a computerized data base; or
- by oral and/or visual presentation.

2. Use of Confidential Information.

Recipient agrees to hold all Confidential Information in strict confidence and shall not, without the express written permission of Discloser or as otherwise expressly permitted herein, (i) disclose any Confidential Information to third parties or (ii) use Confidential Information for any purposes whatsoever, other than the Purpose. Without limiting the generality of the foregoing, Recipient shall be permitted to disclose Confidential Information only to its officers, employees, attorneys, accountants and consultants who have a need to know such Confidential Information and are bound by confidentiality obligations substantially consistent herewith; provided that Recipient will be liable for any acts or omissions by any such person or entity that would, if attributed directly to Recipient, constitute a breach hereof. Recipient shall use its commercially reasonable efforts to assist Discloser in identifying and preventing any unauthorized use or disclosure of any Confidential Information. Without limiting the generality of the foregoing, Recipient shall promptly advise Discloser in the event that it learns or has reason to believe that any person who has had access to Confidential Information has violated or intends to violate the terms of this Agreement, and shall cooperate in seeking injunctive relief against any such person.

3. Standard of Care.

The Recipient agrees to use not less than the same care and discretion to avoid disclosure, publication or dissemination of the Discloser's Confidential Information as it uses with its own similar information that it does not wish to disclose, publish or disseminate and, in any event, not less than a commercially reasonable standard of care.

4. Mandatory Disclosure.

Notwithstanding any other provision hereof, in the event that Recipient is requested or required (by oral questions, interrogatories, requests for information or documents in legal proceedings, subpoena, civil investigative demand or other similar process) to disclose any of the Confidential Information, Recipient shall provide Discloser with prompt written notice of any such request or requirement so that Discloser may seek a protective order or other appropriate remedy. If, in the absence of a protective order or other remedy, Recipient is nonetheless legally compelled to disclose Confidential Information, Recipient may, without liability hereunder, disclose that portion of the Confidential Information which is legally required to be disclosed, provided that Recipient exercises reasonable efforts to preserve the confidentiality of the Confidential Information, including, without limitation, by cooperating with the Discloser to obtain an appropriate protective order or other reliable assurance that confidential treatment will be accorded the Confidential Information.

5. Return of Confidential Information.

Neither party hereto has any obligation to disclose Confidential Information to the other party. Upon the consummation or sooner termination of the Transaction, or at any time upon either party's request, the other party shall promptly, at the requesting party's option, either return or destroy all (or, if so requested, any part) of the Confidential Information previously disclosed, and all copies thereof, and the other party shall certify in writing as to its compliance with the foregoing; provided, however, that each party's counsel may retain a copy of Confidential Information, subject to the confidentiality provisions hereof, solely to the extent required for legal, regulatory or auditing purposes. Notwithstanding the return or destruction of the Confidential Information, the parties hereto will continue to be bound by their obligations of confidentiality and other obligations hereunder.

6. No Representation.

Neither party hereto makes any representation or warranty as to the accuracy or completeness of its Confidential Information

7. No License; Similar Businesses.

Neither this Agreement nor any disclosure of information hereunder grants the Recipient any right, by license or otherwise, in the Confidential Information or under any trademark, copyright or patent now or hereafter owned or controlled by the Discloser, except as otherwise specified in this Agreement. Except as may be set forth in a definitive, written, fully executed agreement relating to the business arrangements contemplated hereby, neither party shall be under any legal obligation of any kind with respect to any proposed business arrangements by virtue of this Agreement or any written or oral expression with respect to such proposed business arrangements by any of its employees or agents. Provided that such party does not use Confidential Information of the other party in the conduct of such business or activity, nothing contained in this Agreement shall restrict or prevent AI or its Affiliates, now or in the future from (i) developing products, concepts, services, or techniques that are similar to or compete with the Company or (ii) entering into any business arrangement (including an investment or acquisition) with companies that are similar to or compete or may in the future compete with the Company; it also being understood that the Company may do business with or establish business relationships with other entities, whether or not they are competitive with AI. As used herein, "Affiliate" means any person or entity controlled by, controlling, or under common control with a specified Party.

8. Notices

All notices (including address change notices) shall be in writing and, except as otherwise provided herein, will be deemed given when delivered personally or two days after they are sent by first class mail (certified mail, return receipt requested) or prepaid express courier to the other party as follows:

Notices to AI shall be addressed to:

Artificial Intelligence, Inc.
Attn: Jane Doe
42 Wallaby Way
Sydney, Australia

with a copy by email to: saul@bettercallsaul.amc.com

Notices to the Company shall be addressed to:

Attn: _____

If either party changes its address during the term hereof, it shall so advise the other party in writing as herein provided.

9. General Provisions.

This Agreement does not require either party to disclose or to receive information or to enter into a transaction.

Neither party may assign, or otherwise transfer, its rights or delegate its duties or obligations under this Agreement without prior written consent of the other party. Any attempt to do so is void. Notwithstanding anything to the contrary contained herein, the terms and conditions of this Agreement shall not apply to any person or business entity, including any Affiliate of AI or its Representatives, that does not receive Company's Confidential Information in connection herewith.

Recipient agrees to comply with all applicable laws, rules and regulations relevant to the Confidential Information, including, but not limited to, government export and import laws and related regulations.

Either party may terminate this Agreement by providing thirty (30) days' prior written notice to the other. The provisions of this Agreement which by their nature extend beyond its termination, including, without limitation, confidentiality obligations with respect to Confidential Information heretofore disclosed hereunder, shall remain in full force and effect until fulfilled, and shall apply to respective successors and assigns.

No failure or delay by any party in exercising any right, power or privilege hereunder shall operate as a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power or privilege hereunder.

Each party acknowledges that the unauthorized disclosure or use of the Discloser's Confidential Information would cause irreparable harm and significant injury to the Discloser, the

degree of which may be difficult to ascertain. Accordingly, each party agrees that the Discloser will have the right to seek immediate injunction enjoining any breach of this Agreement by the Recipient or its employees, consultants or representatives, as well as the right to pursue any and all other rights and remedies available at law or in equity for such breach.

This Agreement will be governed by the substantive laws of the State of Tennessee without regard to or application of choice of law rules or principles. The Parties irrevocably consent to the exclusive jurisdiction of the Federal and state courts located in the County and State of Tennessee for any claim or dispute arising in connection with this Agreement and waive all objections to any such action based on venue or convenience of the forum.

This Agreement contains the entire agreement between the parties concerning the subject matter hereof and no modification or amendment of this Agreement or of the terms and conditions hereof will be binding upon either of the parties unless signed by both parties.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first hereinabove written.

ARTIFICIAL INTELLIGENCE, INC.

By: _____

Name/Title: _____

COMPANY: _____

By: _____

Name/Title: _____